to compete against biological males. Consistent with Title IX and the Equal Protection Clause, we hold that the States may maintain women's and girls' sports for biological females. They may determine eligibility for women's and girls' sports based on biological sex. The Constitution and Title IX do not require an overhaul of women's and girls' sports throughout America.

In so ruling, we emphasize one last point. Most of the biological female and transgender student-athletes who are involved in transgender sports disputes around the country are teenagers or in their early twenties. Those student-athletes want to play sports. Their desire to compete warrants respect. No student-athlete on either side of the issue, whether a biological female or transgender, deserves to be ostracized or vilified.

In B. P. J.'s case, we reverse the judgment of the U. S. Court of Appeals for the Fourth Circuit and remand the case for further proceedings consistent with this opinion. In Hecox's case, we reverse the judgment of the U. S. Court of Appeals for the Ninth Circuit and remand the case for further proceedings consistent with this opinion.

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It is so ordered.

JUSTICE THOMAS, concurring.

The Court correctly holds that neither Title IX nor the Equal Protection Clause prohibits States from offering sex-separated athletics. A man does not have a legal right to compete against women just because he believes that he is a woman. I join the Court's opinion in full. I write separately to make two points.

First, transgender status is not a suspect class requiring heightened equal-protection scrutiny. *United States* v. *Skrmetti*, 605 U. S. 495, 547–557 (2025) (BARRETT, J., concurring). The class of people who claim transgender status could more accurately be described as people who are experiencing "gender dysphoria," which is not a "discrete group."

Id., at 550–551 (internal quotation marks omitted); see also *id.*, at 566–567 (ALITO, J., concurring in part and concurring in judgment). Because "gender dysphoria" is a mutable mental state that is the object of psychiatric treatment, it does not resemble the immutable characteristics on the basis of which our precedents have applied heightened scrutiny—race, sex, or national origin. Instead, gender dysphoria resembles other characteristics on the basis of which legislatures may classify with a merely rational basis. See, *e. g.*, *Heller* v. *Doe*, 509 U. S. 312, 321 (1993) (mental illness); *Plyler* v. *Doe*, 457 U. S. 202, 220 (1982) (immigration status). Legislatures have many obvious rational bases to keep men who believe that they are women out of teams and private spaces reserved for women.

Second, as the Court recognizes, this case concerns "biological men" and "boys who identify as girls." *Ante*, at 975, 991. Men and boys with gender dysphoria are not women or girls, even if they believe that they are. Sex is an immutable "biological" characteristic, see *ante*, at 974–975; it is binary; and "man" and "woman," "boy" and "girl," are the terms that correspond to adults and children of each sex. See A. Byrne, Are Women Adult Human Females? 177 Philosophical Studies 3783, 3786–3787 (2020). To use language to obscure reality—to show "indifference regarding the truth"—is to lie to the public and cease to treat our fellow citizens "as equal[s]." J. Pieper, Abuse of Language—Abuse of Power 17, 21 (1992).

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JUSTICE GORSUCH, concurring.

I join the Court's opinion and write to add two observations about Title IX.

First, "Title IX was enacted as an exercise of Congress' powers under the Spending Clause." *Jackson* v. *Birmingham Bd. of Ed.*, 544 U. S. 167, 181 (2005). That provision of the Constitution does not allow Congress to regulate conduct; instead, it only authorizes Congress to spend money.